

25SMCV06186 25SMCV06186

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C07%2F01%2F2026

Source SHA-256: 857253d840e6e8be73ebe8c9d333e8df34bb7a8678a48956a9d9c9f405893330

Case Number: 25SMCV06186 Hearing Date: July 1, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

June 3, 2026 -- continued to July 1, 2026

CASE NUMBER

25SMCV06186

MOTIONS

Demurrer and Motion to Strike Portions of Complaint

MOVING PARTY

Defendant Larrabee Condominiums Homeowners Association

OPPOSING PARTIES

Plaintiffs Jenny Chen and Rashid Chen-Drake

MOTIONS

This case arises from a dispute between condominium homeowners and their homeowners association.

On December 1, 2025, Plaintiffs Jenny Chen and Rashid Chen-Drake (“Plaintiffs”) brought suit against Defendants Larrabee Condominiums Homeowners Association (“HOA” or “Defendant”) and Dan Heston, individually and in his capacity as President of the Board of Directors for the Larrabee Condominiums Homeowners Association (“Heston”)[1] (together, “Defendants”) alleging six causes of action for (1) breach of 2010 and 2018 written settlement agreements; (2) breach of association’s written 1983 covenants, conditions and restrictions; (3) breach of Davis-Stirling Common Interest Development Act; (4) declaratory relief; (5) violation of Fair Employment and Housing Act; and (6) Unruh Civil Rights Act.

The HOA now demurs to the first and fifth causes of action on the grounds that they fail to state facts sufficient to constitute a cause of action, pursuant to Code of Civil Procedure section 430.10, subdivision (e). The HOA also moves to strike allegations that the October 8, 2012 assault was racially motivated as irrelevant, false, and improper.

Plaintiffs oppose both motions and the HOA replies.

MEET

AND CONFER REQUIREMENT

Code of Civil Procedure section 430.41, subdivision (a) requires: “Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

Similarly, Code of Civil Procedure section 435.5 requires the parties meet and confer before filing a motion to strike.

The statutes further require “As part of the meet and confer process, the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., §§ 430.41, subd. (a)(1) [demurrer], 435.5, subd. (a)(1) [motion to strike].) “The party who filed the complaint, cross-complaint, or answer shall provide legal support for its position that

the pleading is legally sufficient or, in the alternative, how the complaint, cross-complaint, or answer could be amended to cure any legal insufficiency." (Ibid.)

"The parties shall meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41, subd. (a)(2) [demurrer], 435.5, subd. (a)(2) [motion to strike].) "The demurring party shall file and serve with the demurrer a declaration stating either" the means by which the parties met and conferred, or that the party who filed the pleading subject to demurrer failed to respond to the meet and confer request. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Plaintiffs object to the Demurrer and Motion to Strike on the grounds that counsel for the HOA did not even attempt to meet and confer prior to filing them. Indeed, the attorney Declarations of Austin P. Kulik submitted in support of the Demurrer and Motion to Strike indicate:

2. Due to a calendaring error by counsel, Larrabee HOA's counsel was unable to meet and confer five days before the deadline for Larrabee HOA's responsive pleading, as required by Code Civ. Proc. §§ 430.41 and 435.5. However, Larrabee HOA's Demurrer and Motion to Strike were attached as proposed responsive pleadings to Larrabee HOA's Motion to Set Aside Default. Thus, not only were Plaintiffs aware of the grounds for Larrabee HOA's Demurrer and Motion to Strike, Plaintiffs had actual copies of these pleadings. Therefore, Plaintiffs had notice of Larrabee HOA's responsive pleadings and could have amended their Complaint accordingly but did not do so.

(Kulik Decl. ¶ 2.)

The purpose of the meet and confer requirement is not to put Plaintiffs on notice of the impending motions, but is required so parties actually meet and confer in a good faith attempt to resolve or narrow the disputes without the need for judicial intervention.

Because the HOA conceded it did not meet and confer with Plaintiffs before filing the Demurrer and Motion to Strike, the Court continued the hearing to give the parties an opportunity to

meet and confer.

Defendant subsequently filed the attorney Declaration of Austin P. Kulik, indicating he met and conferred telephonically with Plaintiffs' counsel on June 22, 2026, but the parties were unable to reach any agreement.

Thus, the Court finds Defendant has complied with the Meet and Confer requirement.

ANALYSIS

1.

DEMURRER

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts "[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 ["in considering the merits of a demurrer, however, "the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

Further, in ruling on a demurrer, a court must "liberally construe" the allegations of the complaint "with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, "[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is

entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

UNCERTAINTY

“[D]emurrers for uncertainty are disfavored.” (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.) “A demurrer for uncertainty will be sustained only where the pleading is so bad that the responding party cannot reasonably respond - i.e., [a party] cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against [the party].” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 7:85, p. 44, emphasis in original.)

As such, where a demurrer is made upon the ground of uncertainty, the demurrer must distinctly specify exactly how or why the pleading is uncertain, and where such uncertainty appears by reference to page and line numbers. (See Fenton v. Groveland Comm. Services Dist. (1982) 135 Cal.App.3d 797, 809 [“Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty”].)

Defendant’s notice of demurrer lists only Code of Civil Procedure section 430.10, subdivision (e) (failure to state facts sufficient to constitute a cause of action). For that reason alone, the Court overrules Defendant’s demurrer to the first cause of action as procedurally defective.

Notwithstanding, Defendant argues in the memorandum of points and authorities that the first cause of action is uncertain. (See Code Civ. Proc., § 430.10, subd. (f).) Yet, the Court finds that Defendant does not demonstrate that any portions of the Complaint are so faulty that Defendant cannot determine what issues must be admitted or denied

or what claims are directed against it.

Therefore, the Court overrules
Defendant's demurrer to the first cause
of action on the grounds of uncertainty.

B.

FAILURE TO STATE A CAUSE OF ACTION

i.

First Cause
of Action – Breach of Contract

"To prevail on a cause of action for breach of contract, the plaintiff
must prove (1) the contract, (2) the plaintiff's performance of the contract or
excuse for nonperformance, (3) the defendant's breach, and (4) the resulting
damage to the plaintiff." (Richman v.
Hartley (2014) 224 Cal.App.4th 1182, 1186.)

Plaintiffs allege:

15. CHEN purchased her Condominium Unit, Unit
13 ("UNIT") within the Association, in or about 2002.

16. Plaintiffs, at all times relevant to
allegations in Plaintiffs' Verified Complaint herein, were and are members of
the Association and subject to the recorded Declaration of Covenants,
Conditions and Restrictions ("CC&Rs") which run with the title to
each condominium unit within the condominium project known as the LARRABEE CONDOMINIUMS
HOMEOWNERS ASSOCIATION. Membership in the Association is automatic based upon
ownership of a condominium unit therein. The Association is governed by the
provisions of its Governing Documents, which include the Association's
Covenants, Conditions and Restrictions ("CC&Rs").

17. A true and correct copy of the
Association's operative CC&Rs, recorded in or about 1983 ("1983
CC&Rs"), is attached hereto as Exhibit " 1" and incorporated
herein for all purposes.

18. The 1983 CC&Rs governed the First

(approximate years 2008 - 2010 "FIRST DISPUTE") and Second (approximate years 2016 - 2018 "SECOND DISPUTE") disputes CHEN had with Defendant Association.

19. Although Defendant Association recorded a restated and/ or amended CC&Rs in or about June 2022 ("2022 CC&Rs"). The instant disputes, however, relate back to the 1983 CC&Rs, rendering the 2022 CC&Rs for this Matter, moot and inapplicable.

20. The instant dispute ("THIRD DISPUTE") regarding the responsibility of Defendant Association to repair the at-issue roofing or skylight system and resultant damage to the interior of Plaintiffs' condominium unit from water intrusion, manifest on or about January 3, 2022.

21. Because the water damage to the interior of Plaintiffs' condominium unit manifested on or about January 3, 2022, through the roofing or skylight system, this places the issue squarely within the applicable Defendant Association's 1983 CC&Rs as well as the provisions within the 2018 Settlement Agreement between Chen and the Association. This is discussed in greater detail hereinbelow.

[...]

155. As detailed hereinabove, Defendant Association first failed to make repairs to the Common Areas, to wit, the roof over Plaintiffs' Unit, since in or about 2008.

156. Specifically, the Association failed to perform repairs and maintenance to Common Areas as necessary to fix and otherwise prevent water from intruding through Defendant Association Common Areas and into Plaintiff Chen's home within the Association, resulting in interior property damage to and mold growth in, Plaintiff's home.

157. That dispute concluded in Chen's favor, resulting the hereinabove described 2010 Settlement Agreement (See § 1, pages 1-2) and the 2018 Settlement Agreement (See § 3 .17, 3 page 4). [The 2010 Settlement Agreement was previously attached hereto as Exhibit "3" 4 and incorporated herein for all purposes. The 2018 Settlement Agreement was previously 5 attached

hereto as Exhibit "6" and incorporated herein for all purposes].

158. Specifically, the 2010 Settlement

Agreement states in pertinent part. § 1, pages 1-2, 7

1. Roof Repairs - The ASSOCIATION agrees to

repair any and all roof leaks into CHEN's unit, including interior repairs, mold remediation and mold clearance, within sixty (60) days following the date of this Agreement. The

ASSOCIATION agrees to pay for the roof repairs, pay for and conduct mold testing within the CHEN unit to ensure that no harmful mold exists, to pay for and perform all CHEN unit interior repairs previously damaged by water intrusion, including drywall and matching paint, and pay for and remediate mold as necessary as indicated by a certified mold technician. The roofer making the repairs shall perform water testing to ensure the repairs were successful at ASSOCIATION expense. A certified mold technician shall perform mold testing and clearance for the CHEN unit at ASSOCIATION expense. [Emphasis added]. [The 2010 Settlement Agreement was previously attached hereto as Exhibit "3" and incorporated herein for all purposes].

159. The issue, to the extent there even was

a dispute, of whether the Association was responsible to make roof repairs impacting Plaintiffs' Unit, was resolved in favor of Plaintiff Chen.

160. Specifically, the 2018 Settlement

Agreement buttressed the duties of the Association to make repairs to the roof/ roofing system, the skylight and Common Areas related to Plaintiffs' Unit, by providing in pertinent part,

3.17 Plaintiff will be hiring persons or

entities to perform repair or replacement work to the outside and inside of the Unit, such as but not limited to, the window system of the upper patio for the Unit, the door and threshold Leading to the upper patio. Defendant agrees that despite Plaintiff's work on certain Common Areas pursuant to this Agreement, Defendant shall continue being responsible/or, remain responsible for and be responsible for any and all such Common Areas. Defendant shall be responsible for future repairs to or replacement of such affected areas arising out of or related to water leaks affecting Plaintiff's Unit, if needed, including all the window systems, skylight systems, door and threshold to the upper patio and the Unit's awning, as well as the Common Areas as provided in Defendant's Governing Documents. [Emphasis added].

161. The issue, again, to the extent there even was a dispute, of whether the Association was responsible to make roof repairs, including any future issues with the skylight system or water intrusion through Common Areas impacting Plaintiffs' Unit, was not only again resolved in favor of Plaintiff Chen, but the Association accepted responsibility for any future repairs thereof.

162. Because the instant matter's issues regarding water leaking through Plaintiffs' home's skylight began prior to the Association restating its CC&Rs in 2022, the Association's 1983 CC&Rs and the terms of the 2010 and 2018 Settlement Agreements, are the applicable terms governing the instant matter.

163. Reviewing the 2009 dispute with the Association, resulting in the 2010 Settlement Agreement, the 1983 CC&Rs was relied on.

164. Article 6, Section A, page 21 of the 1983 CC&Rs, state in pertinent part,

The Association shall,

Maintain and otherwise manage the Common Area and recreational facilities, improvements and landscaping thereon, including the enforcement of the terms and conditions of the Condominium Documents.

165. In addition, as referred to above, the Association's Common Area includes the roofing system. Specifically, the Association's 1983 CC&Rs further define the Association's Common Area which provides in pertinent part,

"Common Area" shall mean the entire Project The Common Area shall include, but shall not be limited to, the Real Property, all bearing walls, columns, floors ... roofs [Emphasis Added] [CC&Rs, Article I(G), page 4].

167. Following approximately two (2) years since the Association was provided notice of the ongoing water intrusion into Plaintiff's home, via leaks in the roof, the dispute was mediated.

168. During the October 2010 Mediation, the Association was, predictably, unable to provide any persuasive legal authority absolving the Association of its duty to maintain and repair the Association's Common Areas, which include the Roofing System.

169. Having readily determined the roof of the building containing all fifteen (15) condominiums, including Plaintiffs' home, was Association Common Area, the Association had an absolute duty to repair same in a timely manner.

170. The October 2010 Mediation concluded and resolved the dispute. The terms of the resolution was memorialized in the execution of a Settlement Agreement ("2010 Settlement Agreement").

171. The terms of the 2010 Settlement Agreement included the Association's responsibility to pay for and cause to be performed roof repairs to Plaintiff Chen's Unit, mold remediation as well as all repairing all the resultant interior damage from the water intrusion through the roof. Specifically, the 2010 Settlement Agreement provided in pertinent part.

I. Roof Repairs - The ASSOCIATION agrees to repair any and all roof leaks into CHEN's unit, including interior repairs, mold remediation and mold clearance, within sixty (60) days following tile date of this Agreement. The ASSOCIATION agrees to pay for the roof repairs, pay for and conduct mold testing within the CHEN unit to ensure that no harmful mold exists, to pay for and perform all CHEN unit interior repairs previously damaged by water intrusion, including drywall and matching paint, and pay for and remediate mold as necessary as indicated by a certified mold technician. The roofer making the repairs shall perform water testing to ensure the repairs were successful at ASSOCIATION expense. A certified mold technician shall perform mold testing and clearance for the CHEN unit at ASSOCIATION expense.[Emphasis added. See previously attached Exhibit "3", 2010 Settlement Agreement, pages 1-2].

172. In addition, the Association was deemed responsible to reimburse Plaintiff Chen's Attorney Fees and Costs incurred because of the dispute.

173. Thus, as long ago as October 2010, the issue of responsibility for maintaining and repairing the roof of the building covering all fifteen (15) units consisting of the Association, was the Association's.

174. In addition, the Association was held responsible for reimbursing Plaintiff Chen's Attorney Fees and Costs.

175. As detailed herein, the Association, however, after approximately six (6) years of trying, but failing to successfully repair the roof over the Chen residence, the Association simply quit trying to do so, inexplicably claiming the roof was Plaintiff Chen's responsibility to repair.

176. Subsequently, however, the first significant rain event thereafter, revealed the roofing system repairs the Association attempted, were ineffectual. The continued water intrusion damaged the interior of Plaintiffs home, especially in the condominium's hallway and loft areas.

177. The Association made further additional attempts at repairing the water intrusion entering through the roof system.

178. As previously, however, every subsequently significant rain event revealed the Association's repair attempts were ineffective and Plaintiffs home continued to experience further interior water damage.

179. The last attempt by the Association to make effective repairs to the roofing system was in or about March 2016. This last repair attempt was confirmed a failure following the next subsequent rain event.

180. Following the Association's last attempt at repairing the roof system and discovering the attempted repairs failed, the Association inexplicably ceased all further attempts at fulfilling their express written obligations and duties under the 2010 Settlement Agreement to repair the roof.

181. Specifically, an email exchange between Plaintiff and the Association's property manager, Jean Paul Vines confirms the Association's decision to stop all further roof repairs, despite the continued water intrusion. True and correct copies of these emails are reproduced hereinbelow.

182. As stated hereinabove, the Association decided to stop all further attempts at repairing the roof as shown in the below reproduced email exchange between Plaintiff and the Association.

183. From: Jean-Paul Vines <>

Date: December 19, 2016 at 11:03:14 AM PST

To: Jenny Chen-Drake

Subject: RE: leak in unit 13

Dear Jenny,

The board has already been advised by counsel that this is your responsibility. You may proceed however you deem necessary.

Sincerely,

Jean-Paul Vines Management, Inc.

Phone: 818.883.6707

24-HR: 310.854.8818

www.vinesmanagement.com

Confidential Communication

184. From: Jenny Chen-Drake
[mailto:]

Sent: Thursday, December 15, 2016 7:15 PM

To: Jean-Paul Vines Subject:

Re: leak in unit 13

Dear Jean-Paul,

We have had multiple roofers come and examine our roof and they all had different opinions regarding the source of the leak. Everyone have said that the leak did not originate from the skylight. Rather because the skylight was built too close to the roof edge, the rain water accumulates in the gap between the flashing and the roof and pours down into the flashing (leading to the leak). The roofer told us (which Im (sic) sure that he also told you), that even if we replaced the skylight, the leaks would continue to occur. This is not a case of a leaking skylight but a case of an original defect in the design of the placement of the skylight. Perhaps you need to confer with your attorney about this.

As you are well aware, we have been through this entire issue roof leaking issue for about 10 years. We even entered into arbitration during which the HOA had to pay/or our attorneys fees. As a result of the last arbitration, the HOA was supposed to have fixed the leak in our roof and it never did. If the board is insisting on not fixing our roof, please let me know and I will begin our process with our attorney.

Jenny

185. From: Jean-Paul Vines

Date: Thursday, December 15, 2016 at 5:11 PM

To: Jenny Chen-Drake

Subject: RE: leak in unit 13

Jenny,

Per CA Civil Code 4775 owners are responsible for skylights since they are exclusive-use components. Please let me know if you have any questions.

Best regards,

Jean-Paul Vines Management, Inc.

Phone: 818.883.6707

24-HR: 310.854.8818

www.vinesmanagement.com

Confidential Communication

186. The unequivocal and unilateral decision by the Board of the Association to cease any and all efforts to repair the roof, is a breach of the November 2010 Settlement Agreement provisions requiring the Association make roof repairs.

187. The Association's abandonment of repairing the leaking roof over the Chen residence in or about 2017, forced Plaintiff Chen to once again seek ADR.

188. The Association refused to participate in ADR, forcing Chen to file a lawsuit on or about December 21, 2017, for, in pertinent part, breach of the terms of the 2010 Settlement Agreement. The lawsuit is commonly referred to as Chen v. Larrabee Condominiums homeowners Association (LASC Case No.: SC128579).

189. After significant litigation, the matter was mediated.

190. Mediation was held in November 2018, with the main dispute regarding the Association's breach of the 2010 Settlement Agreement. by failing to successfully repair the roof over the Chen residence and the resultant interior property damage from the water intrusion through the roof over the Chen residence.

[...]

192. The Mediation in November 2018 resulted in an executed Settlement Agreement ("2018 Settlement Agreement"),

that once again confirmed the roofing system, including the skylight, was the Association's Common Area and its concurrent duty to maintain and repair same.

193. Both the 2010 and 2018 Settlement

Agreements, are both in effect and both confirm the Association's duty to maintain and repair the Association's roofing system, including the skylight, that impact Plaintiffs' Unit.

194. In addition, the more recent terms of

the 2018 Settlement Agreement again required the Association to reimburse Chen for Chen's Attorney Fees and Costs incurred arising from the Association's breach of the 2010 Settlement Agreement.

195. The 2018 Settlement Agreement between

Plaintiff Chen and Defendant Association, required the Association to perform several duties, including repairing the Roofing System. Specifically, the 2018 Settlement Agreement provided for and mandated in pertinent part in Section 3.17, page 4,

3.1.7 Plaintiff will be hiring persons or

entities to perform repair or replacement work to the outside and inside of the Unit, such as but not limited to, the window system of the upper patio for the Unit, the door and threshold leading to the upper patio. Defendant agrees that despite Plaintiffs work on certain Common Areas pursuant to this Agreement, Defendant shall continue being responsible for, remain responsible for and be responsible for any and all such Common Areas. Defendant shall be responsible for future repairs to or replacement of such affected areas arising out of or related to water leaks affecting Plaintiff's Unit, if needed, including all the window systems, skylight systems. door and threshold to the upper patio and the Unit's awning, as well as all the Common Areas as provided in Defendant's Governing Documents.[Emphasis added].

196. A true and correct copy of the 2018

Settlement Agreement was previously attached hereto as Exhibit "6" and incorporated herein for all purposes.

197. As evidenced by the express terms of the

2018 Settlement Agreement, to wit, Section 3.17, Defendant Association has a duty to repair Plaintiffs' Unit's skylight.

198. Thus, there is no basis whatsoever

supporting a contention that Plaintiff Chen is responsible for the Roofing System, including the skylight systems, should water intrusion issues occur into Plaintiff Chen's Unit within the Association.

199. Pursuant to its express written obligations and duties under the 2018 Settlement Agreement, the Association began making attempts at effecting repairs, including repairs to the roofing system.

200. The unequivocal and unilateral decision by the Board of the Association to cease any and all efforts to repair the roof, is a breach of the November 2010 Settlement Agreement provisions requiring the Association make roof repairs.

[...]

219. As stated above, this Second Mediation produced another signed Settlement Agreement ("2018 Settlement Agreement"). In 2010 and again in 2018, it was confirmed that the Association is responsible to effect the necessary maintenance and repairs to the Roofing System, including the skylight.

220. Plaintiffs are entitled to have the Association perform and complete roof repairs as mandated under the provisions of the Association's 1983 CC&Rs.

(Complaint

¶¶ 15-21, 155-220.)

Defendant argues that the 2010 agreement contains no provision imposing a continuing obligation to repair the roof or other common areas and the 2018 agreement, by its own terms, supersedes the 2010 agreement. Thus, Plaintiff cannot claim a breach of the 2010 agreement.

Further, Defendant argues that the provision of the 2018 agreement making Defendant responsible for future repairs to or replacement of the skylight systems, merely represents a declaration of the parties' then-understanding of their rights and obligations under the CC&Rs and applicable law, and was not intended to be an affirmative

assumption of a new obligation.

In opposition, Plaintiff argues that the 2010 Settlement Agreement covers other issues including special assessments, inspection rights, and surveillance cameras, in addition to the water leak issues, and therefore the 2018 agreement's integration clause was not intended to supersede the 2010 Settlement Agreement.

But regardless of whether the 2018 agreement supersedes the 2010 agreement, eliminating the 2010 agreement would not dispose of the entire cause of action.

With respect to the 2018 agreement, the parties' intent and meaning behind the provision purporting to impose an ongoing obligation on the HOA to maintain/repair the skylight system requires the resolution of factual issues at later stages of the litigation.

For purposes of demurrer, construing that provision in a light most favorable to Plaintiff, as the Court must do, the Court finds that Plaintiff has adequately stated a cause of action for breach of contract.

ii.

Fifth Cause

of Action – Violation of Fair Employment and Housing Act (Gov. Code, §§ 12955 et seq.)

Plaintiffs allege:

305. The Fair Employment and Housing Act (FEHA), Gov't Code §§ 12955, et seq., and its implementing regulations, 2 Cal. Code Regs. § 12005, et seq., prohibit discrimination, harassment, and retaliation in housing accommodations in California based on race or color.

306. FEHA provides, in pertinent part, that it is "unlawful for the owner of any housing accommodation to discriminate against or harass any person because of ... race or color ..." Gov't Code § 12955(a); see also 2 Cal. Code Reg. § 12120.

307. Pursuant to Government Code Section 12927(c)(l) "discrimination" includes, but is not limited to:

b. "Provision of inferior terms, conditions, privileges, facilities, or services in connection with those housing accommodations";

c. "Harassment" in connection with those housing accommodations.

308. FEHA (and its implementing regulations, including 2 Cal. Code Reg. § 20130) additionally prohibits retaliation, providing, in pertinent part:

a. "It shall be unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of that person having exercised or enjoyed, or on account of that person having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by Section 12955," Government Code § 12955.7.

309. FEHA further prohibits, in pertinent part, the following unlawful acts:

a. To discriminate based on color or race, or on any basis prohibited by the Unruh Act, pursuant to Government Code § 12955(d);

b. To aid, abet, or incite a violation of FEHA, pursuant to Government Code § 12955(g); and,

c. To otherwise make unavailable or deny a dwelling based on discrimination because of race or color, pursuant to Government Code § 12955(k).

310. In committing the acts alleged herein, Defendants have injured Plaintiffs by committing discriminatory, harassing, and retaliatory housing practices in violation of FEHA, Government Code §§ 12955, et seq.

311. As alleged herein, Defendant Association and Defendant Dan Heston, motivated by their racist disposition against

Plaintiffs, a mixed-race family (Plaintiff Rashid Chen-Drake is African-American and Plaintiff Chen is Chinese) for bringing prior complaints against Defendant Association and Defendant Dan Heston, including, but not limited to the personal injury lawsuit brought by Plaintiffs against Defendants and the disputes brought by Plaintiffs against Defendants that were resolved by the 2010 Settlement Agreement and the 2018 Settlement Agreement, have inexplicably refused to make or pay for the repairs to the roof, including the skylight impacting Plaintiffs' Unit.

312. Moreover, Defendant Dan Heston's race based hatred against Plaintiff Chen-Drake, manifested itself in Defendant Dan Heston's assault and battery against Plaintiff Chen-Drake. This causes Plaintiffs to live in severe emotional distress and fear of Defendant Hansen (sic).

314. Further, Defendants manifest their racism against Plaintiffs by intentionally and maliciously abusing their power and position of authority afforded by being on, controlling and otherwise influencing the Board of Directors for the Association, to refuse to make the necessary repairs to the roof and skylight system as they are obligated to under the 2010 and 2018 Settlement Agreements, Civil Code § 4775 of the Davis-Stirling Common Use Development Act and the Association's 1983 CC&Rs.

315. As a direct and proximate result of Defendants' willful, knowing, and intentional discrimination, Plaintiffs have suffered damages, including but not limited to financial losses.

316. Plaintiffs additionally suffered from extreme emotional distress, and mental anguish.

317. The property damages incurred resultant from the failure of the Association to effect reliable repairs pursuant to the terms of the 2010 and 2018 Settlement Agreements [The 2010 Settlement Agreement was previously attached hereto as Exhibit "3" and incorporated herein for all purposes. The 2018 Settlement Agreement was previously attached hereto as Exhibit "6" and incorporated herein for all purposes], and refusal to make necessary and further repairs to the roof and skylight systems affecting Plaintiffs' Unit because of Defendants' discrimination, will be proved and determined according to evidence, but such is currently believed to be in excess of \$10,000.

318. In light of Defendants' willful, knowing, and intentional discrimination against Plaintiffs, Plaintiffs seek an award of punitive and exemplary damages in an amount according to proof. Plaintiffs are entitled to compensatory and punitive damages, according to proof, as well as reasonable Attorney Fees and Costs pursuant to Government Code § 12989.2.

319. Plaintiffs have incurred and continue to incur Attorney Fees and Costs, but such are currently in excess of \$40,000. Plaintiffs are presently unaware of the precise amount of these Attorney Fees and Costs and pray leave of court to amend this Verified Complaint when the amounts are more fully known.

(Complaint

¶¶ 305-319.) Defendant demurs on the grounds that this claim is time-barred.

Specifically, the statute of limitations for housing discrimination claims is two years. (See Gov. Code, § 12989.1.)

Here, Plaintiffs allege that Martin Reed wrote to Plaintiffs on or about January 3, 2023, unequivocally stating that Plaintiffs are responsible for maintaining the skylight at issue. (Complaint ¶ 82.) Thus, the statute of limitations began running no later than that date. Yet, Plaintiff did not file the instant lawsuit until December 2, 2025, more than two years later.

Plaintiff argues in opposition that the statute of limitations has not run because the allegedly unlawful discrimination is continuing. Indeed, FEHA provides:

An aggrieved person may commence a civil action in an appropriate court not later than two years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into, whichever occurs last, to obtain appropriate relief with respect to the discriminatory housing practice or breach.

(Gov.

Code, § 12989.1, subd. (a), emphasis added.)

But here, the only continuing housing discrimination alleged is the HOA's continued refusal to repair the skylight leak, which position the HOA communicated by way of the January 2023 letter.

The only other conduct alleged after that date is Defendant's counsel's failure to respond to Plaintiff's counsel's July 29, 2024 letter requesting a full and complete copy of the CC&Rs. (Complaint ¶¶ 105-106.) But the Complaint does not allege how or why a missed email by new counsel constitutes housing discrimination on the part of the HOA.

Therefore, the Court agrees with Defendant that the fifth cause of action, as alleged, is time barred.

2.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

Defendant moves to strike various allegations referencing an October 8, 2012 assault and battery by the HOA's then-Board President on the grounds that they are false and improper because the police report attached to the Complaint contradicts Plaintiff's narrative that the assault was racially motivated.

Although the police report describes the catalyst for the incident as Plaintiffs shutting off the water to

their and the assaulter's unit while doing repairs and does not mention racial animus as a motivating factor, the police report does not necessarily contradict Plaintiffs' narrative that the assault was motivated, at least in part, by racial animus.

Therefore, the Court cannot say as a matter of law that the allegations are false at this stage of the litigation, based solely upon the police report's silence on the issue.

3.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that "if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend." (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiff

has failed to meet this burden as Plaintiff does not specify any facts that could be added to the complaint to allege ongoing racial housing discrimination to cure the statute of limitations problem identified above.

CONCLUSION AND ORDER

For the reasons stated, the Court overrules Defendant's demurrer to the first cause of action and sustains without leave to amend Defendant's demurrer to the fifth cause of action.

Further, the Court denies Defendant's motion to strike.

Further, the Court orders Defendant to file and serve an answer to the Complaint on or before July 15, 2026.

Further, the Court will enter the proposed Order (Demurrer) lodged on April 9, 2026 in conformity with the ruling.

Defendant shall also provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 1, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court

[1] Default was entered against Heston on January 29, 2026.